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Provision of February 13, 2025
Register of provisions
No. 74 of February 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stazione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation) (hereinafter "Regulation");

HAVING REGARD to the "Code regarding the protection of personal data, containing provisions for the
adaptation
of the national legal system to Regulation (EU) No.
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data, as well as the free movement of such
data and repealing Directive 95/46/EC" (Legislative Decree No. 196 of June 30, 2003, hereinafter
"Code");

NOTING that the Office, with act No. 100132/24 of August 22, 2024 (duly notified on the same date
via certified electronic mail), which is to be
understood as fully reported here, initiated, pursuant to Article 166, paragraph 5, of the Code, a
proceeding for the adoption of measures referred to
in Article 58, paragraph 2 of the Regulation against
ADVFAST s.r.l.s. (hereinafter also the "Company"), represented by the legal representative pro
tempore, with
registered office in Sant'Antimo (NA), Viale delle Rondini
38/A, Tax Code 09291851211;

NOTING that, from the examination of the documents of the administrative proceeding, it emerged, in
summary, as follows:

- a complaint was received by the Authority from
Mr. XX, who reported having received repeated
calls on his fixed and mobile phone lines from
operators of "Bollette.net" to solicit the review of
bills related to his electricity and gas services. The complainant continued to receive calls despite
having expressed his
opposition to the processing of data for
promotional-advertising purposes;
- the calls were made using the numbers 3783046391 and 3783046388 which, from a
check carried out on the website <https://www.agcom.it/numerazionicallcenter>, are not registered in the
Register of Communication Operators (R.O.C.);
- from the checks carried out by the Office, it emerged
that "Bollette.net" is a portal managed by ADVFAST
s.r.l.s., as indicated on the website <https://>

www.advfast.it/. Among other things, checks on the indicated site revealed that the section dedicated to the Privacy Policy (<https://www.advfast.it/privacypolicy.php>) displays the text “File not found.”;

- the Office therefore sent the Company an invitation to provide comments and any adherence to the requests of the complainant, with a note duly notified on November 28, 2023, via certified electronic mail, without receiving a response; it then reiterated the request, pursuant to Article 157 of the Code, with certified electronic mail dated May 8, 2024 - also duly delivered - highlighting that any lack of response could lead to the application of the sanctions provided for by current legislation;
- since the Company did not respond to the renewed requests for information, the Office communicated to ADVFAST, with a note notified on August 22, 2024 via duly delivered certified electronic mail, the initiation of the administrative proceeding aimed at adopting the corrective and sanctioning measures provided for by Article 58, paragraph 2 of the Regulation, inviting the same company to submit defensive writings or a request for a hearing before the Guarantor within thirty days;

NOTING that with the aforementioned act of August 22, 2024, the Company was charged with the violation of Articles 157 and 166, paragraph 2 of the Code, from which the application of the sanction provided for by Article 83, paragraph 5 of the Regulation may arise, with simultaneous communication of the initiation of the proceeding for the adoption of the relevant corrective and sanctioning measures and that the indicated provisions represent the transposition into the Italian legal system of the general obligation of cooperation on the part of the data controller as per Article 31 of the Regulation;

ACKNOWLEDGING that the Company did not submit defensive writings nor requested to be heard by the Authority;

CONSIDERING that the inaction of the Company has resulted in an increase in the burdens of investigative obligations and a slowdown in the administrative action for the ascertainment of the alleged violations; this circumstance emerges clearly, given that the Office has correctly sent the requests for information specifying that a lack of response could lead to the application of administrative sanctions;

NOTING that:

- a) with reference to the treatments complained of by the complainant, the repeated lack of responses from the Company did not allow for the acquisition of a complete picture of information;
- b) having failed to provide the aforementioned responses to the requests for information made

by the Authority, most recently with a note dated May 8, 2024, the Company has made itself responsible for conduct in

violation of the provisions of Articles 157 and

166, paragraph 2 of the Code and Article 31 of the Regulation;

c) the above necessitates once again ordering the Company, pursuant to Article 58, paragraph.

1. letter a) of the Regulation and Article 157 of the Code, to respond to the requests made by the Authority;

CONSIDERING, therefore, that it is necessary to order the Company to respond, pursuant to Article 58, paragraph 1, letter a), of the Regulation and Article 157 of the Code, within 30 days from the notification of this provision, to the request for information from the Guarantor, made on May 8, 2024, reserving the right to further investigate the legality of the processing carried out by the Company itself; NOTING, moreover, that the failure to respond to the request for information referred to in the previous point b) constitutes a violation of the obligation of cooperation on the part of the data controller and requires the adoption of an injunction order, pursuant to Articles 166, paragraph 7 of the Code and 18 of Law No. 689/1981, for the application against ADVFAST of the administrative pecuniary sanction provided for by Article 83, paragraph 5 of the Regulation;

HAVING REGARD to Articles 166, paragraph 2 of the Code and 83, paragraph 5 of the Regulation which, for the aforementioned violation, provides for the application of an administrative sanction of payment of an amount up to €20,000,000 or, for companies, up to 4% of the worldwide annual turnover of the previous financial year, if higher;

CONSIDERING that, for the purposes of determining the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation;

CONSIDERING that, in the case at hand, the following factors are relevant:

a. the seriousness of the violation (Article 83, paragraph 2, letter a) of the Regulation), due to the repeated failure to respond to the requests of the Guarantor (specifically, the invitation to comply dated November 28, 2023, and the request for information dated May 8, 2024);

b. the duration of the violation (Article 83, paragraph 2, letter a) of the Regulation), from the time of the failure to respond to the first communication from the Guarantor (notified on November 28, 2023) until the date of the initiation of the administrative procedure (August 22, 2024);

c. the severely negligent nature of the conduct (Article 83, paragraph 2, letter b) of the Regulation), as the company did not take into account the consequences that could arise from the failure to respond to the requests of the Guarantor, even in terms of the complete investigation of the procedure regarding the complaint;

d. the lack of cooperation with the Authority (Article 83, paragraph 2, letter f) of the Regulation);

e. the economic conditions of the offender (Article 83, paragraph 2, letter k) of the Regulation), taking into account the value of production and the profit for the financial year with reference to the financial statements for the year 2023 (the latest available);

CONSIDERING that, based on the overall elements mentioned above, and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1, of the Regulation, an administrative sanction of payment of an amount of €2,000.00 (two thousand) should be applied to ADVFAST;

ALSO CONSIDERING that the accessory sanction of publication on the Guarantor's website of this provision should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, taking into account the conduct of the Company which did not allow for the acquisition of a complete information framework for the purposes of evaluating the alleged unlawful acts complained of by the complainant;

CONSIDERING that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor, are met;

HAVING SEEN the documentation on file;

HAVING SEEN the observations made by the Secretary General pursuant to Article 15 of the

Guarantor's Regulation No. 1/2000, adopted by resolution of June 28, 2000;

REPORTING Attorney Guido Scorza;

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

a) pursuant to Article 58, paragraph 1, letter a) of the Regulation and Article 157 of the Code, orders the company ADVFAST s.r.l.s., represented by the legal representative pro tempore, with registered office in Sant'Antimo (NA), Viale delle Rondini 38/A, Tax Code 09291851211, to provide the Authority, within 30 days from the notification of this provision, with the information requested in the note of May 8, 2024; any failure to comply with the provisions of this point may result in the application of an additional administrative pecuniary sanction, as provided for by Article 83, paragraph 5, of the Regulation;

ORDERS

b) pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166, paragraph 7 of the Code, to the same ADVFAST, to pay the sum of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in this provision concerning the failure to respond to the requests for information made by the Authority, noting that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by complying with the prescribed requirements and paying, within thirty days, an amount equal to half of the imposed sanction within the deadline provided for the filing of the appeal as indicated below.

ORDERS

c) ADVFAST, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the aforementioned sum of €2,000.00 (two thousand), according to the methods indicated in

attachment, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

ORDERS

d) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of the injunction order on the Guarantor's website;

e) pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation;

f) pursuant to Articles 154-bis of the Code and 37 of the aforementioned Regulation No. 1/2019, the publication of this provision.

Pursuant to Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place where the data controller is located, within thirty days from the date of communication of the provision itself.

Rome, on February 13, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi